



The Paul Lavelle Foundation
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Safeguarding Adults Policy

Aims

The objectives of The Paul Lavelle Foundation are:

The Paul Lavelle Foundation is committed to creating and maintaining a safe and positive environment and accepts our responsibility to safeguard the welfare of all adults involved with the organisation in accordance with the Care Act 2014.

The Paul Lavelle Foundation safeguarding adults policy and procedures apply to all individuals involved in The Paul Lavelle Foundation.

The Paul Lavelle Foundation will encourage and support partner organisations, including clubs, counties, suppliers, and sponsors to adopt and demonstrate their commitment to the principles and practice of equality as set out in this safeguarding adults policy and procedures.

The Paul Lavelle Foundation will not tolerate the abuse of adults in any of its forms and is committed to safeguarding adults with care and support needs from harm.

This policy outlines the steps The Paul Lavelle Foundation will make to safeguard an adult with care and support needs if they are deemed to be at risk or at risk. This policy sets out the roles and responsibilities of The Paul Lavelle Foundation in working together with other professionals and agencies in promoting the adult's welfare and safeguarding them from abuse and neglect.

The Paul Lavelle Foundation will ensure that decisions made will allow adults to make their own choices and include them in any decision making. The Paul Lavelle Foundation will also ensure that safe and effective working practices are in place.

This policy is intended to support staff and volunteers working within The Paul Lavelle Foundation to understand their role and responsibilities in safeguarding adults. All staff and volunteers are expected to follow this policy.

The key objectives of this policy are for all employees and volunteers of The Paul Lavelle Foundation to:

- have an overview of adult safeguarding
- be clear about their responsibility to safeguard adults
- ensure the necessary actions are taken where an adult with care and support needs is deemed to be at risk



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This policy is based on:

- The Care Act 2014 and the Care and Support statutory guidance
- London Safeguarding Adults policy and procedures
- Islington Safeguarding Adults Board's local procedures and appendices

Under the Human Rights Act 1998, everyone has the right to live free from abuse and neglect. <https://www.equalityhumanrights.com/en/human-rights/human-rights-act>
Copies of this policy should be available within The Paul Lavelle Foundation and The Paul Lavelle Foundation will not tolerate the abuse of adults in the organisation and staff and volunteers should be made aware of how this policy can be accessed.

What is Safeguarding adults?

'Safeguarding means protecting an adult's right to live in safety, free from abuse and neglect. It is about people and organisations working together to prevent and stop both the risks and experience of abuse or neglect, while at the same time making sure that the adult's wellbeing is promoted including, where appropriate, having regard to their views, wishes, feelings and beliefs in deciding on any action. This must recognise that adults sometimes have complex interpersonal relationships and may be ambivalent, unclear or unrealistic about their personal circumstances.'
Care and Support Statutory Guidance, Department of Health, updated February 2017

All adults should be able to live free from fear and harm. But some may find it hard to get the help and support they need to stop abuse.

An adult may be unable to protect themselves from harm or exploitation due to many reasons, including their mental or physical incapacity, sensory loss or physical or learning disabilities. This could be an adult who is usually able to protect themselves from harm but maybe unable to do so because of an accident, disability, frailty, addiction or illness.

The Paul Lavelle Foundation adheres to following the six key principles that underpin safeguarding work (See Care Act guidance)

- Empowerment
- Prevention
- Proportionality
- Protection
- Partnership
- Accountability



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The Paul Lavelle Foundation will not tolerate the abuse of adults and staff and volunteers should ensure that their work reflects the principles above and ensure the adult with care and support needs is involved in their decisions and informed consent is obtained. The Paul Lavelle Foundation should ensure that the safeguarding action agreed is the least intrusive response to the risk. Partners from the community should be involved in any safeguarding work in preventing, detecting and reporting neglect and abuse. The Paul Lavelle Foundation should be transparent and accountable in delivering safeguarding actions.

What is Making Safeguarding Personal (MSP)?

MSP means a case should be person-led and outcome-focused. The individual should be involved in identifying how best to respond to their safeguarding situation by giving them more choice and control as well as improving quality of life, wellbeing and safety.

The Paul Lavelle Foundation will not tolerate the abuse of adults The Paul Lavelle Foundation will ensure that adults are involved in their safeguarding arrangements and each individual is dealt with on a case by case basis. As adults may have different preferences, histories and life styles, the same process may not work for all.

Who do adult safeguarding duties apply to?

The Care Act 2014 sets out that adult safeguarding duties apply to any adult who:

- has care and support needs, and
- is experiencing, or is at risk of, abuse and neglect, and
- is unable to protect themselves from either the risk of, or the experience of abuse or neglect, because of those needs.

Who do I go to if I am concerned?

The named responsible person for safeguarding duties for The Paul Lavelle Foundation is Sharne Williams sharne@paullavellefoundation.co.uk All staff and volunteers should contact Sharne Williams for any concerns/queries they have in regards to safeguarding adults. A log of the concern must be kept. Sharne Williams will be responsible to make decisions about notifying adult social services if required and consider alternative actions, where necessary. Sharne Williams will also ensure that the safeguarding adults' policies and procedures are in place and up to date. They will ensure a safe environment is



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promoted for staff and volunteers and adults accessing the. Sharne Williams will ensure they are up to date with their safeguarding adults training.

What should I do if I am concerned, or if someone raises concerns with you?

Staff and volunteers at The Paul Lavelle Foundation who have any adult safeguarding concerns should:

- It is not your responsibility to decide whether or not an adult has been abused. It is, however, everyone's responsibility to respond to and report concerns.
- If you are concerned someone is in immediate danger, contact the police on 999 straight away. Where you suspect that a crime is being committed, you must involve the police.
- If you have concerns and or you are told about possible or alleged abuse, poor practice or wider welfare issues you must report this to It is not your responsibility to decide whether or not an adult has been abused. It is, however, everyone's responsibility to respond to and report concerns.
- If you are concerned someone is in immediate danger, contact the police on 999 straight away. Where you suspect that a crime is being committed, you must involve the police.
- If you have concerns and or you are told about possible or alleged abuse, poor practice or wider welfare issues you must report this to the (insert name of your organisation) Lead Safeguarding or Welfare Officer. Or, if the Lead Safeguarding or Welfare Officer is implicated, then report to The Paul Lavelle Foundation Charity Development Manager.
- When raising your concern with the Club Welfare Officer or Lead Safeguarding Officer, remember Making Safeguarding Personal. It is good practice to seek the adult's views on what they would like to happen next and to inform the adult you will be passing on your concern.
- It is important when considering your concern that you keep the person informed about any decisions and action taken, and always consider their needs and wishes.



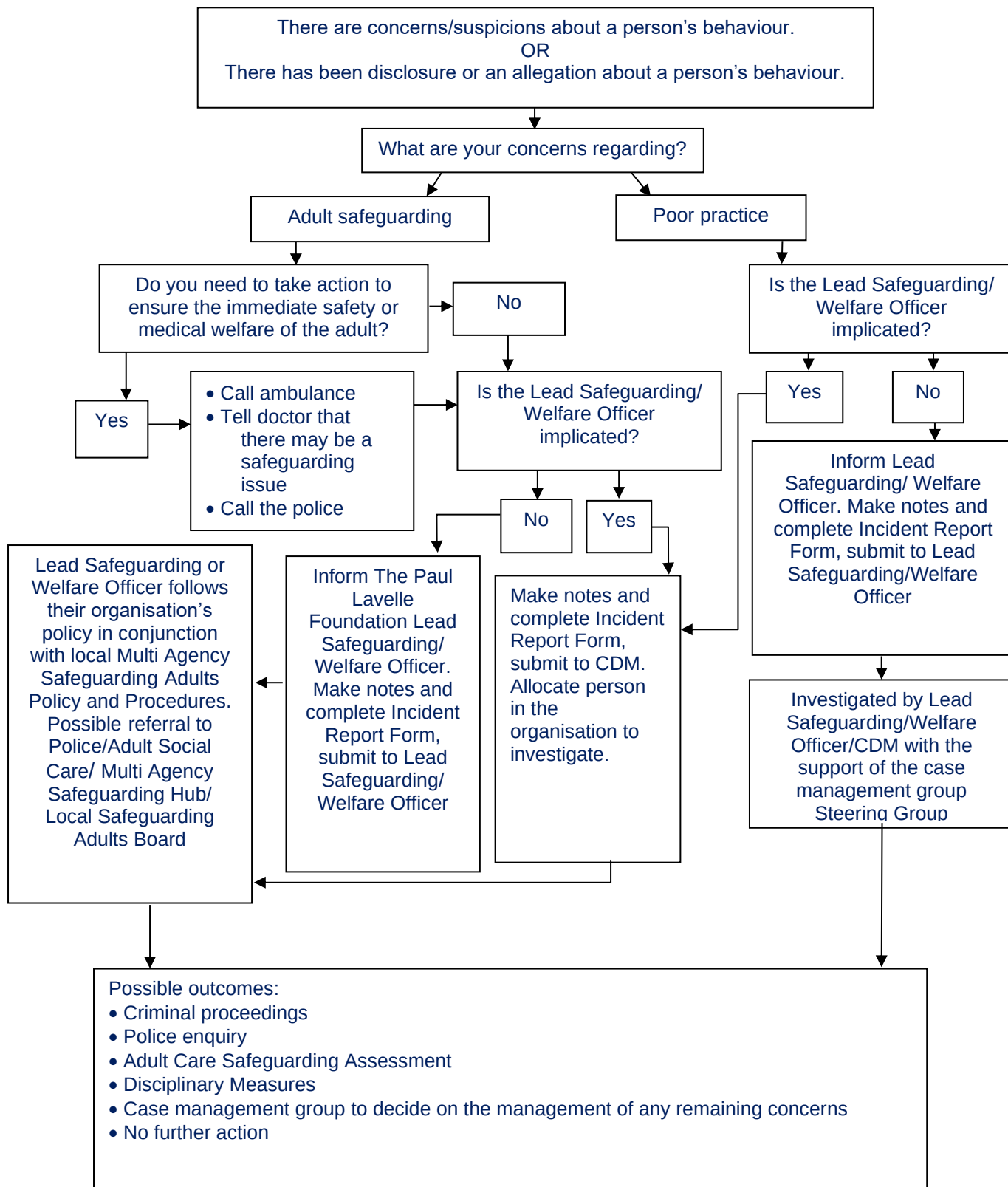
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How to respond to a concern

- Make a note of your concerns.
- Make a note of what the person has said using his or her own words as soon as practicable. Complete an Incident Form and submit to The Paul Lavelle Foundation Lead Safeguarding or Welfare Officer.
- Remember to make safeguarding personal. Discuss your safeguarding concerns with the adult, obtain their view of what they would like to happen, but inform them it's your duty to pass on your concerns to your lead safeguarding or welfare officer.
- Describe the circumstances in which the disclosure came about.
- Take care to distinguish between fact, observation, allegation and opinion. It is important that the information you have is accurate.
- Be mindful of the need to be confidential at all times. This information must only be shared with your Lead Safeguarding or Welfare Officer and others on a need-to-know basis.
- If the matter is urgent and relates to the immediate safety of an adult at risk then contact the emergency services immediately.
- Lead Safeguarding or Welfare Officer. Or, if the Lead Safeguarding or Welfare Officer is implicated, then report to The Paul Lavelle Foundation Charity Development Manager.
- When raising your concern with the Club Welfare Officer or Lead Safeguarding Officer, remember Making Safeguarding Personal. It is good practice to seek the adult's views on what they would like to happen next and to inform the adult you will be passing on your concern.
- It is important when considering your concern that you keep the person informed about any decisions and action taken, and always consider their needs and wishes.

Safeguarding Adults Flowchart

Dealing with Concerns, Suspicions or Disclosure



Remember to involve the adult at risk throughout the process wherever possible and gain consent for any referrals to social care if the person has capacity



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What are your roles and responsibilities?

All staff, management, trustees and volunteers at The Paul Lavelle Foundation are expected to report any concerns to the named person for safeguarding. If the allegation is against one of The Paul Lavelle Foundation members, volunteers, trustees or directors, seek advice from The Paul Lavelle Foundation safeguarding lead Sharne Williams. If the allegation is against the safeguarding lead, seek advice from Wirral Borough Council.

The designated safeguarding adults lead should be responsible for providing acknowledgement of the referral and brief feedback to the person raising the original concern. Feedback should be given in a way that will not make the situation worse or breach the Data Protection Act. If the police are involved, they should be consulted prior to giving feedback to the referrer to ensure any criminal investigation is not affected.

The local authority will decide on who will lead on a safeguarding enquiry should it progress to that stage. The Paul Lavelle Foundation should not conduct its own safeguarding enquiry unless instructed to do so by the local authority. Staff and volunteers should ensure that the adult with care and support needs is involved at all stages of their safeguarding enquiry ensuring a person-centred approach is adopted.

Complaints procedure

The Paul Lavelle Foundation promotes transparency and honesty when things go wrong. All staff and volunteers should apologise and be honest with service users and other relevant people when things go wrong.

OR:

The Paul Lavelle Foundation is registered with the Charity Commission and therefore all staff and volunteers have a legal Duty of Candour to give a full and honest explanation to people about when things go wrong.

If a staff or volunteer or any other member of the organisation is unhappy with The Paul Lavelle Foundation's decision about the safeguarding concern, please refer to The Paul Lavelle Foundation's complaints policy and procedure.

The Paul Lavelle Foundation is committed to ensuring that staff and volunteers who in good faith whistle-blow in the public interest, will be protected from reprisals and



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victimisation. Please see The Paul Lavelle Foundation staff Hand Book for our Whistle Blowing Policy.

The Mental Capacity Act 2005 is to be used when decisions on behalf of those adults with care and support needs who are unable to make some decisions for themselves. Refer to the Mental Capacity Act Code of Practice, <https://www.gov.uk/government/publications/mental-capacity-act-code-of-practice>.

You will need to involve an advocate if the person lacks capacity to make decisions about the safeguarding concern.

Why is it important to take action?

It may be difficult for adults with care and support needs to protect themselves and to report abuse. They rely on you to help them.

Confidentiality and information sharing

The Paul Lavelle Foundation expects all staff, volunteers, trustees to maintain confidentiality at all times. In line with Data Protection law, The Paul Lavelle Foundation does not share information if not required.

It should however be noted that information should be shared with authorities if an adult is deemed to be at risk of immediate harm. Sharing the right information, at the right time, with the right people can make all the difference to preventing harm.

For further guidance on information sharing and safeguarding see:
<https://www.scie.org.uk/care-act-2014/safeguarding-adults/sharing-information/keymessages.asp>

Recruitment and selection

The Paul Lavelle Foundation is committed to safe employment. Safe recruitment practices, such as Disclosure and Barring checks reduce the risk of exposing adults with care and support needs to people unsuitable to work with them.



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Training, awareness raising and supervision

The Paul Lavelle Foundation ensures that all staff and volunteers receive basic awareness training on safeguarding adults as they may come across adults with care and support needs who may be at risk of abuse. Those adults may report things of concern to staff or volunteers who should be equipped with the basic knowledge around safeguarding adults and be confident to identify that abuse is taking place and action is required. All staff and volunteers should be clear about the core values of The Paul Lavelle Foundation and commitment to safeguarding adults.

Radicalisation and extremism of adults with care and support needs is a form of emotional/psychological exploitation. Radicalisation can take place through direct personal contact, or indirectly through social media.

If staff are concerned that an adult with care and support needs is at risk of being radicalised and drawn into terrorism, they should treat it in the same way as any other safeguarding concern.

For more information about Prevent see:
<https://www.gov.uk/government/publications/prevent-duty-guidance>

Types of safeguarding adults abuse

The Care and Support statutory guidance sets out the 10 main types of abuse:

- Physical abuse
- Neglect
- Sexual abuse
- Psychological
- Financial abuse
- Discriminatory
- Organisational
- Domestic violence
- Modern Slavery
- Self-neglect

However, you should keep an open mind about what constitutes abuse or neglect as it can take many forms and the circumstances of the individual case should always be considered



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Possible signs of abuse

Abuse and neglect can be difficult to spot. You should be alert to the following possible signs of abuse and neglect:

- Depression, self-harm or suicide attempts
- Difficulty making friends
- Fear or anxiety
- The person looks dirty or is not dressed properly,
- The person never seems to have money,
- The person has an injury that is difficult to explain (such as bruises, finger marks, 'non-accidental' injury, neck, shoulders, chest and arms),
- The person has signs of a pressure ulcer,
- The person is experiencing insomnia
- The person seems frightened, or frightened of physical contact.
- Inappropriate sexual awareness or sexually explicit behaviour
- The person is withdrawn, changes in behaviour

You should ask the person if you are unsure about their well-being as there may be other explanations to the above presentation.

Who abuses and neglects adults?

Abuse can happen anywhere, even in somebody's own home. Most often abuse takes place by others who are in a position of trust and power. It can take place whether an adult life alone or with others. Anyone can carry out abuse or neglect, including:

- partners;
- other family members;
- neighbours;
- friends;
- acquaintances;
- local residents;
- people who deliberately exploit adults they perceive as vulnerable to abuse;
- paid staff or professionals; and
- volunteers and strangers

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